



Form 4 – Application in existing proceedings

Industrial Relations Act 2016, s 527, s 989
Industrial Relations (Tribunals) Rules 2011, r 8

Information

- Use this form to make an interlocutory application in the Industrial Court of Queensland or Queensland Industrial Relations Commission.
- Please read this form carefully and complete all relevant sections.
- The Applicant must serve a copy of this Application on the Respondent.
- Documents which are longer than 30 pages in length must be provided to the Industrial Registry in hard copy before it will be accepted for filing.
- For further information please refer to the website www.qirc.qld.gov.au or contact the Industrial Registry on 1300 592 987 or via email at qirc.registry@qirc.qld.gov.au.

Note

The Applicant **must** file a **Form 20 – Affidavit** in support of the Application

Applicant:	CORY LEA SHEPHERD
	v
Respondent:	WORKERS COMPENSATION REGULATOR

If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file with this form.

Application

This is an Application to the [please tick one option]:

☐

Industrial Court of Queensland

☒

Queensland Industrial Relations Commission

Pursuant to:

[Insert name and section
of relevant legislation]

Sections 536, 539, 541, 545, and 580 of the Industrial Relations Act 2016 (Qld);

Rules 8, 49, 64C, 64D, 64E, 64F, and 226 of the Industrial Relations (Tribunals) Rule

1. Applicant's details			
Title [please select]:	☒ Mr ☐ Mrs ☐ Ms ☐ Miss ☐ Mx ☐ Other: _____		
Name of Applicant:	CORY LEA SHEPHERD		
Name of contact person:	AS ABOVE		
Postal/Service address:	15 EDMOND STREET		
	Suburb/Town	COOMERA	Postcode 4209
Phone number:	0417 400 227	Mobile number:	
Email address:	CORYSHEPHERD1@HOTMAIL.COM		

2. Applicant's representative [if applicable]			
Organisation:	N/A		
Name of contact person:			
Postal/Service address:			
	Suburb/Town		Postcode
Phone number:		Mobile number:	
Email address:			

3. Respondent			
Name of Respondent:	WORKERS COMPENSATION REGULATOR		
Name of contact person:	RENEE MATHESON		
Postal/Service address:	PO BOX 10119		
	Suburb/Town	BRISBANE ADELAIDE STREET	Postcode
Phone number:	07 3811 6443	Mobile number:	0460 021 030
Email address:	RENEE.MATHESON@OIR.QLD.GOV.AU		

4. Respondent's representative [if applicable]			
Organisation:			
Name of contact person:			
Postal/Service address:			
	Suburb/Town		Postcode
Phone number:		Mobile number:	
Email address:			

5. Grounds of application and details of decision sought

Please outline, in consecutively numbered paragraphs, the reasons you are making this application and the details of the decision you are seeking.

Please attach a schedule if more room required

supporting schedule B
Form 4 application in existing proceedings

6. Signature of Applicant/Representative

Signature:	
Name:	Cory Lea Shepherd
Date:	25.02.2026

Ensure to also file a Form 20 – Affidavit in support of the Application

SUPPORTING SCHEDULE B

FORM 4 — APPLICATION IN EXISTING PROCEEDINGS

IN THE QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Industrial Relations Act 2016 (Qld), s 527, s 989

Industrial Relations (Tribunals) Rules 2011 (Qld), r 8

Matter No: WC / 2024 / 227

Before: Industrial Commissioner Dwyer

Applicant: CORY LEA SHEPHERD

v

Respondent: WORKERS' COMPENSATION REGULATOR

GROUND OF APPLICATION AND DETAILS OF DECISION SOUGHT

PART A — STATUTORY AND RULE FRAMEWORK

A.1 Jurisdiction and Power

This application is made pursuant to Sections 536, 539, 541, 545, and 580 of the *Industrial Relations Act 2016 (Qld)*; Rules 8, 49, 64C, 64D, 64E, 64F, and 226 of the *Industrial Relations (Tribunals) Rules 2011 (Qld)*; and the Commission's inherent jurisdiction to control its own processes and prevent abuse of process.

PART B — THE FOUR BINDING GROUNDS

GROUND 1: THE MAHAFFEY ESTOPPEL — THE SECTION 32(5)(a) DEFENCE IS LEGALLY UNAVAILABLE

B.1.1 The Binding Statutory Findings (Exhibit B1, pp 25–27)

The Regulator's own Review Officer, Ms Victoria Squires, made three express findings of fact in the Review Decision dated 24 October 2024:

Finding A: *"the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."*

Finding B: *"work events were the sole cause"* of the psychological injury.

Finding C: *"there was no pre-existing factor or condition."*

These are the Regulator's own findings. They are not findings the Respondent can now litigate around.

B.1.2 The Governing Authority: *Workers' Compensation Regulator v Mahaffey* ICQ 10

In *Workers' Compensation Regulator v Mahaffey* ICQ 10 (Martin J, President), the Industrial Court of Queensland considered the proper application of ss 32(1) and 32(5) of the *Workers' Compensation and Rehabilitation Act 2003* (Qld).

Martin J held at that in considering s 32(5), "*after weighing up all the relevant factors*", conduct that does not, on balance, displace the evidence in favour of the worker must result in a finding in the worker's favour. His Honour emphasised that s 32(1) "*covers the whole gamut of the employment relationship*" while s 32(5) is "*concerned only with a 'slice' of the employment.*"

Critically, Martin J endorsed the principle from *Bird v Commonwealth* that where two constructions of workers' compensation legislation are possible, "*that which is favourable to the worker should be preferred*" — the foundational canon of beneficial construction.

Application to WC/2024/227:

The Respondent's own Review Officer found that the 17–18 March 2024 rostering was "in direct contradiction to the award." This is an **objective breach of an industrial instrument** — not a matter of managerial judgment or discretion. A roster that contravenes a binding Award cannot, as a matter of law, constitute "reasonable management action taken in a reasonable way" for the purposes of s 32(5)(a).

The Respondent has advanced no fresh evidence, no materially changed circumstances, and no application to adduce new evidence to displace this binding finding.

B.1.3 The Contradictory Pleading (Form 9C, para 36)

Despite the above, the Respondent's Statement of Facts and Contentions at paragraph 36 pleads:

"any management action involved in the causation of any injury to the Appellant was reasonable management action taken in a reasonable way."

This pleading:

- (a) directly contradicts the Review Officer's binding factual finding.
- (b) is legally irreconcilable with *Mahaffey* ICQ 10.
- (c) constitutes an abuse of process within **Rule 226(2)(c)** of the *Industrial Relations (Tribunals) Rules 2011* (Qld); and
- (d) constitutes continuing a proceeding "without reasonable cause" within s **545(2)(a)(i)** of the *Industrial Relations Act 2016* (Qld).

The Commission is respectfully invited to strike out paragraph 36 of Form 9C.

GROUND 2: THE CHURCH/WICKS BAR — THE UNPLEADED ADHD/ANXIETY AMBUSH IS PROHIBITED

B.2.1 The Impermissible Late Issue (AR, para 32)

At paragraph 32 of the Admissions Response, the Respondent deploys — **for the first time in this entire proceeding** — an unpleaded causation defence:

"the records show a past medical history of *Anxiety and ADHD* from 26 October 2022 which is missing from Exhibit A5."

This issue:

- was **never raised** during the statutory review process before Review Officer Squires.
- was **never pleaded** in Form 9C (SOFAC, filed 22 July 2025).
- was **not raised for seven months** after the medical records were obtained on 8 July 2025.
- was deployed through an Admissions Response — a mechanism carrying no obligation to provide particulars, supporting evidence, or leave to amend; and
- **directly contradicts** the Review Officer's express finding of "no pre-existing factor or condition."

B.2.2 The Governing Authorities

Church v Simon Blackwood (Workers' Compensation Regulator) ICQ 031 (Martin J, President):

Martin J held that the lodging of an appeal "*does not open the gates for both parties to request the Commission to determine any number of preliminary issues*" and that the ambit of the hearing is determined by the case before the Regulator. Issues "*removed in time and effect*" from the review decision cannot be raised.

Wicks v Workers' Compensation Regulator QIRC 001 (Merrell DP):

Applying *Church*, the Deputy President dismissed the Regulator's attempt to raise a limitation period that was not the subject of the review decision, holding that "*the appeal provisions do not contemplate another issue, removed in time and effect from the review decision, being considered in the appeal.*"

The October 2022 ADHD/Anxiety issue is precisely the species of issue *Church* and *Wicks* prohibit.

B.2.3 The Fruit of the Poisonous Tree

The ADHD/Anxiety material was derived **exclusively** from medical records obtained in admitted breach of Rule 64C (Ground 3 below). The issue exists in this proceeding only because of that procedural breach. Even if the *Church/Wicks* bar did not apply (which it does), the material is independently inadmissible as the direct product of unlawfully obtained evidence.

GROUND 3: ADMITTED BREACH OF RULES 64C–64F — UNLAWFUL SEIZURE OF MEDICAL RECORDS

B.3.1 The Admitted Non-Service (AR, para 25)

As detailed in the sworn Affidavit of C. Shepherd at Section 2, the Respondent makes an unqualified admission of failing to serve the mandatory Form 29. To justify this omission, the Respondent relies on a demonstrably false interpretation of Rule 64D(1)(a) and deliberately failed to file the mandatory Form 31 Certificate to evade Registry scrutiny.

B.3.2 Compliance Audit

Rule	Requirement	Compliance
Rule 64C(2)	Form 29 must be issued only after service under r 64D	X Admitted non-service
Rule 64D(1)(a)	Form 29 must be served on person about whom information is sought	X Admitted non-service
Rule 64E	Affected party has 7 days to object: automatic stay	X Right destroyed
Rule 64F	Service of objection stays the notice	X Mechanism bypassed
Form 31 Certificate	Must be filed if affected party not served	X Never filed

B.3.3 Fraus Omnia Corruptit and the "But-For" Causation of the Form 9C

The Respondent's email of 14 July 2025 bypassing the Appellant's then-solicitors (Saines Legal) to secure an extension of time constitutes fraud by concealment (fraus omnia corruptit).

1. The Concealment: The Respondent deliberately suppressed the fact that it had already seized the Appellant's complete medical file on 8 July 2025 (AR para 24) without the mandatory Form 29 service.
2. The "But-For" Causation: But for this active concealment, Saines Legal would have been alerted to the Rule 64C breach prior to the crystallisation of the Form 9C. Saines Legal would have exercised the Appellant's statutory right to object under Rule 64E, triggering an automatic stay under Rule 64F.
3. The Consequence: Because of the concealment, the Appellant was deprived of his legal representation (which broke down upon the subsequent service of the unredacted file on 22 July 2025), and the Respondent was permitted to file a Form 9C constructed entirely from unlawfully obtained medical intelligence and ex parte coordination with PID subjects. Submission: A pleading secured through procedural fraud is an abuse of process. The Form 9C is the fruit of the poisonous tree and must be struck out in its entirety pursuant to Rule 226(2)(c).

B.3.4 The *Bunning v Cross* Discretion — All Three Limbs Satisfied

Bunning v Cross (1978) 141 CLR 54 establishes a judicial discretion to exclude improperly obtained evidence where: (a) there is impropriety or contravention of law; (b) the impropriety was deliberate or reckless; and (c) admission would be unfair or contrary to public policy.

Limb	Satisfaction
(a) Impropriety/contravention	Admitted breach of Rules 64C, 64D, 64E, 64F; false Rule 64D excuse; no Form 31

Limb	Satisfaction
(b) Deliberate or reckless	14 July concealment during direct contact — objectively deliberate; cannot be characterised as inadvertent given the specific concealment of print-date metadata
(c) Unfair/contrary to public policy	Admission would: (i) reward deliberate procedural breach; (ii) deny the Appellant rights Parliament specifically conferred under Rule 64E; (iii) expose intimate private medical material (2022 ADHD, STI screening, bowel medications) unrelated to the June 2024 injury; (iv) permit ambush deployment of material contradicting the Review Officer's findings

GROUND 4: PUBLIC INTEREST DISCLOSURE REPRISAL — THE ENTIRE DEFENCE STRATEGY IS TAINTED

B.4.1 The Foundational Admission (AR, para 20)

At paragraph 20, the Respondent provides an **unqualified admission** that the Appellant's complaint to the Ethical Standards Unit was determined on 24 December 2024 to constitute a **valid Public Interest Disclosure** under the *Public Interest Disclosure Act 2010* (Qld), Reference 24-ESU-1130, naming **Ms Tammy Reese and Ms Chloe Taylor as subjects**.

This admission was conspicuously made **without** the "does not admit because the appeal is a hearing de novo" qualifier the Respondent deployed at AR paragraphs 2, 34, and 44. The selective omission of the de novo qualification at the one paragraph that damages the Respondent's case most was a considered forensic choice. The PID is an immovable admitted fact.

B.4.2 The Detriment — Exhibit E1 Subpoenaed Email Chain

The objective timeline of ex parte coordination between Ms Matheson, the formally admitted PID subjects, and Queensland Health HR management is set out in full at Section 4.2 of the Affidavit of C. Shepherd.

B.4.3 The Consequential Legal Effect on s 32(5)

Section 45(2) of the *PID Act* provides that a manager may take reasonable management action **only if** the manager's reasons for taking the action do not include the fact that the employee has made the public interest disclosure.

Management action that constitutes statutory reprisal under s 40 of the *PID Act* **cannot, as a matter of law**, simultaneously constitute "reasonable management action taken in a reasonable way" under s 32(5)(a) of the *Workers' Compensation and Rehabilitation Act 2003* (Qld). A statutory prohibition cannot simultaneously be "reasonable." The s 32(5)(a) exclusion is therefore defeated on this ground **independently** of *Mahaffey*.

PART C — RULE 49 VIOLATIONS: THE ADMISSIONS RESPONSE IS SYSTEMATICALLY DEFECTIVE

C.1 Violation 1 — The Forensic Impossibility (AR paras 24 and 29)

Ms Matheson admits at paragraph 24 that the medical records were "**printed on 8 July 2025.**" She then asserts at paragraph 29 that "**the medical records were not in the possession of the Regulator at the time of sending the email on 14 July 2025.**"

These two statements are **mutually exclusive**. Records printed on 8 July 2025 either were or were not in the Regulator's possession on 14 July 2025. Both cannot be true. Placing a forensic impossibility on a formal tribunal record constitutes an abuse of the Commission's processes.

C.2 Violation 2 — Denying Incontrovertible Documentary Contents (AR para 2)

The Appellant sought admission that the Review Decision states the rostering constituted "unreasonable management action." Ms Matheson responds that she "does not admit the fact ... because the appeal is a hearing de novo." The Appellant did not ask whether the finding is binding — he asked whether the Review Decision **contains those words**. The answer is yes. The words are on the page. Under *Fox v Percy* (2003) 214 CLR 118, contemporaneous documents must be preferred over subjective denials and cannot be "not admitted" as to their literal contents.

C.3 Violation 3 — Weaponised Vexatious Assertion (AR para 26)

The Appellant sought admission that bowel medications, sexual function treatments, and STI screening results in Exhibit A5 are irrelevant to a June 2024 psychological injury claim. Ms Matheson "denies" this, asserting the records "*read as a whole, are relevant in that they tend to prove or disprove an allegation in the proceeding.*"

No forensic pathway is identified. No allegation is specified. There is no legitimate connection between hemorrhoid cream, bowel medication, or prostate pathology and a psychiatric injury claim arising from an Award roster breach. This assertion constitutes a formal written declaration of intent to weaponize scandalous intimate medical material against a self-represented worker, in violation of s 25 of the *Human Rights Act 2019* (Qld).

PART D — SPOILIATION OF EVIDENCE AND ADVERSE INFERENCES

D.1 Admitted Destruction — Communications Book (AR, para 11(a))

The Respondent admits at AR paragraph 11(a) that Ms Chloe Taylor **removed pages** from the workplace Communications Book. Ms Taylor referred to it as a "burn book" in a 6 June 2023 email (Exhibit H).

The Communications Book is a **public record** within the meaning of s 2 of the *Public Records Act 2002* (Qld). Removal of pages constitutes unauthorised disposal contrary to s 13 of that Act.

D.2 Active Suppression — Email Archive Cancellation

Between 5–8 August 2025, the Appellant lodged IT Service Request QH-RITM16413751 with Queensland Health to restore email archives containing contemporaneous evidence of management's knowledge of the roster breach. The restoration request was **cancelled by the department** — not passive loss, but affirmative cancellation.

PART E — DISQUALIFYING CONFLICT OF INTEREST

E.1 The Impasse

Ms Renee Matheson, Senior Appeals Officer, is simultaneously:

- (a) the Respondent's carriage officer and *de facto* legal representative.
- (b) a **material witness** to the procedural breaches forming the subject of this application.
- (c) the author of **false pleadings** at AR para 25 (the demonstrably false Rule 64D excuse) and AR para 29 (the forensic impossibility); and
- (d) the subject of an **active Ethical Standards Unit assessment** regarding her conduct in obtaining Exhibit A5.

E.2 Application

A representative who must personally defend her own procedural conduct to avoid disciplinary sanction cannot simultaneously provide the Commission with objective, unconflicted advice. The Admissions Response serves not the Regulator's institutional interest, but the personal defensive interests of Ms Matheson, Ms Reese, and Ms Taylor. This is precisely the disqualifying conflict *Kallinicos v Hunt* was designed to address.

E.3 The Section 530 Objection

If the Respondent seeks leave for legal representation under s 530(4) of the *Industrial Relations Act 2016* (Qld), the Appellant formally objects. Any Counsel instructed by Ms Matheson receives instructions from a conflicted officer whose personal interest taints every instruction. Leave should be refused until carriage is re-assigned to an independent officer.

PART F — ORDERS SOUGHT

ORDER 1 — PERMANENT EXCLUSION OF EXHIBIT A5 (*Bunning v Cross*)

That the medical records obtained pursuant to Form 29 dated 4 July 2025 (Exhibit A5), and all copies thereof, be **permanently excluded from evidence** and struck from the Commission's record.

ORDER 2 — PROHIBITION OF UNPLEADED PRE-EXISTING CONDITION DEFENCE

That the Respondent be **strictly prohibited** from advancing any causation defence alleging a pre-existing psychological condition, including the "Anxiety and ADHD from 26 October 2022" deployed at AR paragraph 32.

ORDER 3 — STRIKE OUT OF CONTRADICTORY PLEADING (*Mahaffey Estoppel*)

That paragraph 36 of the Respondent's Form 9C — and any submission asserting that the relevant management action was "reasonable management action taken in a reasonable way" — be **struck out pursuant to Rule 226(2)(c)** as an abuse of process.

ORDER 4 — DECLARATION OF STATUTORY PID REPRISAL AND PRECLUSION OF SECTION 32(5)

That the Commission make a formal Declaration and Finding that the Respondent's conduct between 30 June and 10 July 2025 — specifically the *ex parte* coordination with Ms Tammy Reese and Ms Chloe Taylor (the

formally admitted PID subjects, Reference 24-ESU-1130) — constitutes "detriment" in contravention of s 40(1) of the *Public Interest Disclosure Act 2010* (Qld), and therefore cannot as a matter of law constitute "reasonable management action taken in a reasonable way" under s 32(5)(a) of the *Workers' Compensation and Rehabilitation Act 2003* (Qld).

ORDER 5 — ADVERSE FINDING ON CREDIBILITY AND DECLARATION OF MISCONDUCT

That the Commission make a formal **Adverse Finding** regarding the credibility of Ms Renee Matheson.

ORDER 6 — REMOVAL OF MS MATHESON FROM CARRIAGE

That Ms Renee Matheson be **immediately removed from carriage** of this matter and the Respondent be directed to assign an independent, unconflicted Senior Appeals Officer.

ORDER 7 — ADVERSE INFERENCES FROM SPOILIATION

That the Commission draw adverse inferences pursuant to *Jones v Dunkel* (1959) 101 CLR 298 regarding the destruction of the Communications Book and the suppression of the email archives (QH-RITM16413751).

ORDER 8 — INDEMNITY COSTS

That pursuant to s 545(2)(a)(i) of the *Industrial Relations Act 2016* (Qld), the Respondent pay the Appellant's costs of and incidental to this interlocutory application, and all costs thrown away, on an indemnity basis, and that a costs certificate issue pursuant to s 545(2)(b) certifying the Respondent's representatives have acted unreasonably.

ORDER 9 — INTERIM SEALING ORDER

That pursuant to s 580 of the *Industrial Relations Act 2016* (Qld), the Commission make an **immediate interim non-publication and sealing order** in respect of Exhibit A5 and Exhibit A4, pending determination of Order 1.

ORDER 10 — DETERMINATION ON THE PAPERS

That this Application be determined on the papers without oral hearing, pursuant to s 541(1)(b) of the *Industrial Relations Act 2016* (Qld). In the alternative, if the Commission is not satisfied all orders can be determined on the papers, the Appellant requests that Orders 1, 2, 3, and 9 be determined on the papers, with remaining orders listed for a short directions hearing.

ORDER 11 — ALTERNATIVE RELIEF (IF ORDERS 1 AND 2 NOT GRANTED IN FULL)

In the alternative:

- (a) That the Respondent file an Amended SOFAC within 14 days, pleading with full particulars any pre-existing condition defence, identifying every document from Exhibit A5 relied upon, and seeking formal leave.
- (b) That the Appellant be granted 28 days to file a Reply.
- (c) That Exhibit A5 be immediately removed from the Respondent by the Registrar to **remove all entries pre-dating 1 January 2024** and **all physical health entries and medications** bearing no psychiatric nexus.
- (d) That any pre-existing condition issue, if permitted, be listed for a separate preliminary hearing with full procedural protections.

ORDER 12 — REFERRAL

That the Commission refer the conduct of Ms Matheson to the Queensland Ombudsman and/or the Crime and Corruption Commission for consideration under s 15 of the *Crime and Corruption Act 2001* (Qld).
